

HOUSE No. 159

The Commonwealth of Massachusetts

PRESENTED BY:

Michael P. Kushmerek

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act prohibiting employment discrimination based on legal use of cannabis.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael P. Kushmerek</i>	<i>3rd Worcester</i>	<i>1/14/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>2/10/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>3/24/2025</i>
<i>Sean Reid</i>	<i>11th Essex</i>	<i>3/27/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/12/2025</i>

HOUSE No. 159

By Representative Kushmerek of Fitchburg, a petition (accompanied by bill, House, No. 159) of Michael P. Kushmerek and Jacob R. Oliveira for legislation to prohibit employment discrimination based on legal use of cannabis. Cannabis Policy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act prohibiting employment discrimination based on legal use of cannabis.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 151B of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by adding the following subsection: --

3 24. The term “safety sensitive position” shall mean a position with duties that, if
4 performed while under the influence of drugs or alcohol, could lead to a lapse of attention that
5 could cause actual, immediate, and permanent physical injury or loss of life to self or others.

6 SECTION 2. Section 4 of Chapter 151B of the General Laws, as so appearing, is hereby
7 amended by adding after subsection 19, the following subsections: --

8 20. For an employer or his agent, because of the presence of tetrahydrocannabinol or
9 marijuana metabolite in the blood, urine or other body sample provided by the individual, to
10 refuse to hire or employ or to bar or to discharge from employment such person or to
11 discriminate against such person in compensation or in terms, conditions or privileges of

employment, unless reasonable suspicion exists that the employee was impaired by marijuana at the employee's place of employment or during the hours of employment.

It shall be a defense to such employment action if the employee, due to the presence of tetrahydrocannabinol or marijuana metabolite in the blood, urine or other body sample provided by the individual, is unable to maintain licenses, credentials, or other qualifications that are reasonably necessary for the performance of the employee's position, regardless of whether such licensing, credentialing, or other qualifications prohibit the employee from using marijuana. This section shall not apply to safety sensitive positions or if compliance would cause the employer to commit a violation of a federal law, regulation, contract, or funding agreement.